

TENTATIVE RULING:

Background

Defendant filed a Motion, on 1/23/26, to set aside the Default Judgment, claiming that there was a lack of actual notice, under Section 473.5 of the CCP.

The Default Judgment was filed on 10/23/25.

Notice of this Motion was timely filed on Plaintiff.

Analysis

Defendant seeks relief under Section 473.5 of the Code of Civil Procedure, which confers power on the court to set aside a default judgment when the defendant does not receive actual notice of the process

Section 473.5(a) of the CCP requires that a defendant make this motion either within 2 years from the time judgment was taken, or 180 days after service on defendant with written notice that judgment was taken, whichever occurs earlier.

In the instant matter, Defendant's Motion was filed more than 2 years after time of judgment, which is outside the permissible time window.

Disposition

Defendant's Motion is Denied.

Plaintiff to file the Order.

3. 9:00 AM CASE NUMBER: L22-06113

CASE NAME: CAPITAL ONE N.A. VS. EDWIN CHIRINO

*HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION
FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at the address for Defendant's counsel of record. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement, filed on 1/17/24, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$16,101.76, plus costs, less any credits for payments received.

The Defendant made payments of \$7,050.

Costs are \$578.50. A memo on costs was filed with the court.

A dismissal was entered on 1/31/24.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$9,630.26.

Plaintiff to file order on Motion, as well as submit Judgment.

4. 9:00 AM CASE NUMBER: L23-03486
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. STEPHANIE JIN
***HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO STIPULATION**
FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on 11/6/25, a motion to enter judgment pursuant to stipulation.

The Motion is unopposed.

The motion was originally scheduled for 1/27/26, but was continued by the court to 4/7/26, for lack of service on the Defendant. Plaintiff had notified only an attorney about the 1/27/27 Motion, yet there was no evidence that the attorney was in fact counsel of record.

The court had ordered the Plaintiff to notify the Defendant of the 4/7/26 hearing.

There is still no evidence that Plaintiff has served Defendant with notice of this Motion